

Against “Realism”

For as long as men and women have talked about war, they have talked about it in terms of right and wrong. And for almost as long, some among them have derided such talk, called it a charade, insisted that war lies beyond (or beneath) moral judgment. War is a world apart, where life itself is at stake, where human nature is reduced to its elemental forms, where self-interest and necessity prevail. Here men and women do what they must to save themselves and their communities, and morality and law have no place. *Inter arma silent leges*: in time of war the law is silent.

Sometimes this silence is extended to other forms of competitive activity, as in the popular proverb, “All’s fair in love and war.” That means that anything goes—any kind of deceit in love, any kind of violence in war. We can neither praise nor blame; there is nothing to say. And yet we are rarely silent. The language we use to talk about love and war is so rich with moral meaning that it could hardly have been developed except through centuries of argument. Faithfulness, devotion, chastity, shame, adultery, seduction, betrayal; aggression, self-defense, appeasement, cruelty, ruthlessness, atrocity, massacre—all these words are judgments, and judging is as common a human activity as loving or fighting.

It is true, however, that we often lack the courage of our judgments, and especially so in the case of military conflict. The moral posture of mankind is not well represented by that popular proverb about love and war. We would do better to mark a contrast rather than a similarity: before Venus, censorious; before Mars, timid.

Not that we don't justify or condemn particular attacks, but we do so hesitantly and uncertainly (or loudly and recklessly), as if we were not sure that our judgments reach to the reality of war.

The Realist Argument

Realism is the issue. The defenders of *silent leges* claim to have discovered an awful truth: what we conventionally call inhumanity is simply humanity under pressure. War strips away our civilized adornments and reveals our nakedness. They describe that nakedness for us, not without a certain relish: fearful, self-concerned, driven, murderous. They aren't wrong in any simple sense. The words are sometimes descriptive. Paradoxically, the description is often a kind of apology: yes, our soldiers committed atrocities in the course of the battle, but that's what war does to people, that's what war is like. The proverb, all's fair, is invoked in defense of conduct that appears to be unfair. And one urges silence on the law when one is engaged in activities that would otherwise be called unlawful. So there are arguments here that will enter into my own argument: justifications and excuses, references to necessity and duress, that we can recognize as forms of moral discourse and that have or don't have force in particular cases. But there is also a general account of war as a realm of necessity and duress, the purpose of which is to make discourse about particular cases appear to be idle chatter, a mask of noise with which we conceal, even from ourselves, the awful truth. It is that general account that I have to challenge before I can begin my own work, and I want to challenge it at its source and in its most compelling form, as it is put forward by the historian Thucydides and the philosopher Thomas Hobbes. These two men, separated by 2,000 years, are collaborators of a kind, for Hobbes translated Thucydides' *History of the Peloponnesian War* and then generalized its argument in his own *Leviathan*. It is not my purpose here to write a full philosophical response to Thucydides and Hobbes. I wish only to suggest, first by argument and then by example, that the judgment of war and of wartime conduct is a serious enterprise.

The Melian Dialogue

The dialogue between the Athenian generals Cleomedes and Tisias and the magistrates of the island state of Melos is one of the high points of Thucydides' *History* and the climax of his realism. Melos was a Spartan colony, and its people had "therefore refused to be subject, as the rest of the islands were, unto the Athenians; but rested at first neutral; and afterwards, when the Athenians put them to it by wasting of their lands, they entered into open war."¹ This is a classic account of aggression, for to commit aggression is simply to "put people to it" as Thucydides describes. But such a description, he seems to say, is merely external; he wants to show us the inner meaning of war. His spokesmen are the two Athenian generals, who demand a parley and then speak as generals have rarely done in military history. Let us have no fine words about justice, they say. We for our part will not pretend that, having defeated the Persians, our empire is deserved; you must not claim that having done no injury to the Athenian people, you have a right to be let alone. We will talk instead of what is feasible and what is necessary. For this is what war is really like: "they that have odds of power exact as much as they can, and the weak yield to such conditions as they can get."

It is not only the Melians here who bear the burdens of necessity. The Athenians are driven, too; they must expand their empire, Cleomedes and Tisias believe, or lose what they already have. The neutrality of Melos "will be an argument of our weakness, and your hatred of our power, among those we have rule over." It will inspire rebellion throughout the islands, wherever men and women are "offended with the necessity of subjection"—and what subject is not offended, eager for freedom, resentful of his conquerors? When the Athenian generals say that men "will everywhere reign over such as they be too strong for," they are not only describing the desire for glory and command, but also the more narrow necessity of inter-state politics: reign or be subject. If they do not conquer when they can, they only reveal weakness and invite attack; and so, "by a necessity of nature" (a phrase Hobbes later made his own), they conquer when they can.

The Melians, on the other hand, are too weak to conquer. They face a harsher necessity: yield or be destroyed. "For you have not in hand a match of valor upon equal terms . . . but rather a consultation upon your safety . . ." The rulers of Melos, however, value freedom above safety: "If you then to retain your command, and

your vassals to get loose from you, will undergo the utmost danger: would it not in us, that be already free, be great baseness and cowardice, if we should not encounter anything whatsoever rather than suffer ourselves to be brought into bondage?" Though they know that it will be a "hard matter" to stand against the power and fortune of Athens, "nevertheless we believe that, for fortune, we shall be nothing inferior, as having the gods on our side, because we stand innocent against men unjust." And as for power, they hope for assistance from the Spartans, "who are of necessity obliged, if for no other cause, yet for consanguinity's sake and for their own honor to defend us." But the gods, too, reign where they can, reply the Athenian generals, and consanguinity and honor have nothing to do with necessity. The Spartans will (necessarily) think only of themselves: "most apparently of all men, they hold for honorable that which pleaseth and for just that which profiteth."

So the argument ended. The magistrates refused to surrender; the Athenians laid siege to their city; the Spartans sent no help. Finally, after some months of fighting, in the winter of 416 B.C., Melos was betrayed by several of its citizens. When further resistance seemed impossible, the Melians "yielded themselves to the discretion of the Athenians: who slew all the men of military age, made slaves of the women and children; and inhabited the place with a colony sent thither afterwards of 500 men of their own."

The dialogue between the generals and the magistrates is a literary and philosophical construction of Thucydides. The magistrates speak as they well might have done, but their conventional piety and heroism is only a foil to what the classical critic Dionysius calls the "depraved shrewdness" of the Athenian generals.² It is the generals who have often seemed unbelievable. Their words, writes Dionysius, "were appropriate to oriental monarchs . . . but unfit to be spoken by Athenians . . ."* Perhaps Thucydides means us to notice the unfitness, not so much of the words but of the policies

* Even oriental monarchs are not quite so toughminded as the Athenian generals. According to Herodotus, when Xerxes first disclosed his plans for an invasion of Greece, he spoke in more conventional terms: "I will bridge the Hellespont and march an army through Europe into Greece, and punish the Athenians for the outrage they committed upon my father and upon us." (*The Histories*, Book 7, trans. Aubrey de Selincourt) The reference is to the burning of Sardis, which we may take as the pretext for the Persian invasion. The example bears out Francis Bacon's assertion that "there is that justice imprinted in the nature of men that they enter not upon wars (whereof so many calamities do ensue) but upon some, at least specious, grounds and quarrels." (Essay 29, "Of the True Greatness of Kingdoms and Estates")

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they were used to defend, and thinks we might have missed it had he permitted the generals to speak as they probably in fact spoke, weaving "fair pretenses" over their vile actions. We are to understand that Athens is no longer itself. Cleomedes and Tisias do not represent that noble people who fought the Persians in the name of freedom and whose politics and culture, as Dionysius says, "exercised such a humanizing influence on everyday life." They represent instead the imperial decadence of the city state. It is not that they are war criminals in the modern sense; that idea is alien to Thucydides. But they embody a certain loss of ethical balance, of restraint and moderation. Their statesmanship is flawed, and their "realistic" speeches provide an ironic contrast to the blindness and arrogance with which the Athenians only a few months later launched the disastrous expedition to Sicily. The *History*, on this view, is a tragedy and Athens itself the tragic hero.³ Thucydides has given us a morality play in the Greek style. We can glimpse his meaning in Euripides' *The Trojan Women*, written in the immediate aftermath of the conquest of Melos and undoubtedly intended to suggest the human significance of slaughter and slavery—and to predict a divine retribution:⁴

How ye are blind
Ye treaders down of cities, ye that cast
Temples to desolation, and lay waste
Tombs, the untrodden sanctuaries where lie
The ancient dead; yourselves so soon to die!

But Thucydides seems in fact to be making a rather different, and a more secular, statement than this quotation suggests, and not about Athens so much as about war itself. He probably did not mean the harshness of the Athenian generals to be taken as a sign of depravity, but rather as a sign of impatience, toughmindedness, honesty—qualities of mind not inappropriate in military commanders. He is arguing, as Werner Jaeger has said, that "the principle of force forms a realm of its own, with laws of its own," distinct and separate from the laws of moral life.⁵ This is certainly the way Hobbes read Thucydides, and it is the reading with which we must come to grips. For if the realm of force is indeed distinct and if this is an accurate account of its laws, then one could no more criticize the Athenians for their wartime policies than one could criticize a stone for falling downwards. The slaughter of the Melians is explained by reference to the circumstances of war and the necessities of nature; and again, there is nothing to say. Or rather, one can say anything, call necessity cruel and war hellish; but while

these statements may be true in their own terms, they do not touch the political realities of the case or help us understand the Athenian decision.

It is important to stress, however, that Thucydides has told us nothing at all about the Athenian decision. And if we place ourselves, not in the council room at Melos where a cruel policy was being expounded, but in the assembly at Athens where that policy was first adopted, the argument of the generals has a very different ring. In the Greek as in the English language, the word *necessity* "doubles the parts of indispensable and inevitable."⁶ At Melos, Cleomedes and Tisias mixed the two of these, stressing the last. In the assembly they could have argued only about the first, claiming, I suppose, that the destruction of Melos was necessary (indispensable) for the preservation of the empire. But this claim is rhetorical in two senses. First, it evades the moral question of whether the preservation of the empire was itself necessary. There were some Athenians, at least, who had doubts about that, and more who doubted that the empire had to be a uniform system of domination and subjection (as the policy adopted for Melos suggested). Secondly, it exaggerates the knowledge and foresight of the generals. They are not saying with certainty that Athens will fall unless Melos is destroyed; their argument has to do with probabilities and risks. And such arguments are always arguable. Would the destruction of Melos really reduce Athenian risks? Are there alternative policies? What are the likely costs of this one? Would it be right? What would other people think of Athens if it were carried out?

Once the debate begins, all sorts of moral and strategic questions are likely to come up. And for the participants in the debate, the outcome is not going to be determined "by a necessity of nature," but by the opinions they hold or come to hold as a result of the arguments they hear and then by the decisions they freely make, individually and collectively. Afterwards, the generals claim that a certain decision was inevitable; and that, presumably, is what Thucydides wants us to believe. But the claim can only be made afterwards, for inevitability here is mediated by a process of political deliberation, and Thucydides could not know what was inevitable until that process had been completed. Judgments of necessity in this sense are always retrospective in character—the work of historians, not historical actors.

Now, the moral point of view derives its legitimacy from the perspective of the actor. When we make moral judgments, we try to recapture that perspective. We reiterate the decision-making

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process, or we rehearse our own future decisions, asking what we would have done (or what we would do) in similar circumstances. The Athenian generals recognize the importance of such questions, for they defend their policy certain "that you likewise, and others that should have the same power which we have, would do the same." But that is a dubious knowledge, especially so once we realize that the "Melian decree" was sharply opposed in the Athenian assembly. Our standpoint is that of citizens debating the decree. What *should* we do?

We have no account of the Athenian decision to attack Melos or of the decision (which may have been taken at the same time) to kill and enslave its people. Plutarch claims that it was Alcibiades, chief architect of the Sicilian expedition, who was "the principal cause of the slaughter . . . having spoken in favor of the decree."⁷ He played the part of Cleon in the debate that Thucydides does record, that occurred some years earlier, over the fate of Mytilene. It is worth glancing back at that earlier argument. Mytilene had been an ally of Athens from the time of the Persian War; it was never a subject city in any formal way, but bound by treaty to the Athenian cause. In 428, it rebelled and formed an alliance with the Spartans. After considerable fighting, the city was captured by Athenian forces, and the assembly determined "to put to death . . . all the men of Mytilene that were of age, and to make slaves of the women and children: laying to their charge the revolt itself, in that they revolted not being in subjection as others were . . ."⁸ But the following day the citizens "felt a kind of repentance . . . and began to consider what a great and cruel decree it was, that not the authors only, but that the whole city should be destroyed." It is this second debate that Thucydides has recorded, or some part of it, giving us two speeches, that of Cleon upholding the original decree and that of Diodotus urging its revocation. Cleon argues largely in terms of collective guilt and retributive justice; Diodotus offers a critique of the deterrent effects of capital punishment. The assembly accepts Diodotus' position, convinced apparently that the destruction of Mytilene would not uphold the force of treaties or ensure the stability of the empire. It is the appeal to interest that triumphs—as has often been pointed out—though it should be remembered that the occasion for the appeal was the repentance of the citizens. Moral anxiety, not political calculation, leads them to worry about the effectiveness of their decree.

In the debate over Melos, the positions must have been reversed. Now there was no retributivist argument to make, for the Melians

had done Athens no injury. Alcibiades probably talked like Thucydides' generals, though with the all-important difference I have already noted. When he told his fellow citizens that the decree was necessary, he didn't mean that it was ordained by the laws that govern the realm of force; he meant merely that it was needed (in his view) to reduce the risks of rebellion among the subject cities of the Athenian empire. And his opponents probably argued, like the Melians, that the decree was dishonorable and unjust and would more likely excite resentment than fear throughout the islands, that Melos did not threaten Athens in any way, and that other policies would serve Athenian interests and Athenian self-esteem. Perhaps they also reminded the citizens of their repentance in the case of Mytilene and urged them once again to avoid the cruelty of massacre and enslavement. How Alcibiades won out, and how close the vote was, we don't know. But there is no reason to think that the decision was predetermined and debate of no avail: no more with Melos than with Mytilene. Stand in imagination in the Athenian assembly, and one can still feel a sense of freedom.

But the realism of the Athenian generals has a further thrust. It is not only a denial of the freedom that makes moral decision possible; it is a denial also of the meaningfulness of moral argument. The second claim is closely related to the first. If we must act in accordance with our interests, driven by our fears of one another, then talk about justice cannot possibly be anything more than talk. It refers to no purposes that we can make our own and to no goals that we can share with others. That is why the Athenian generals could have woven "fair pretenses" as easily as the Melian magistrates; in discourse of this sort anything can be said. The words have no clear references, no certain definitions, no logical entailments. They are, as Hobbes writes in *Leviathan*, "ever used with relation to the person that useth them," and they express that person's appetites and fears and nothing else. It is only "most apparent" in the Spartans, but true for everyone, that "they hold for honorable that which pleaseth them and for just that which profiteth." Or, as Hobbes later explained, the names of the virtues and vices are of "uncertain signification."⁹

For one calleth wisdom, what another calleth fear; and one cruelty what another justice; one prodigality, what another magnanimity . . . etc. And therefore such names can never be true grounds of any ratiocination.

"Never"—until the sovereign, who is also the supreme linguistic authority, fixes the meaning of the moral vocabulary; but in the

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state of war, "*never*" without qualification, because in that state, by definition, no sovereign rules. In fact, even in civil society, the sovereign does not entirely succeed in bringing certainty into the world of virtue and vice. Hence moral discourse is always suspect, and war is only an extreme case of the anarchy of moral meanings. It is generally true, but especially so in time of violent conflict, that we can understand what other people are saying only if we see through their "fair pretenses" and translate moral talk into the harder currency of interest talk. When the Melians insist that their cause is just, they are saying only that they don't want to be subject; and had the generals claimed that Athens deserved its empire, they would simply have been expressing the lust for conquest or the fear of overthrow.

This is a powerful argument because it plays upon the common experience of moral disagreement—painful, sustained, exasperating, and endless. For all its realism, however, it fails to get at the realities of that experience or to explain its character. We can see this clearly, I think, if we look again at the argument over the Mytilene decree. Hobbes may well have had this debate in mind when he wrote, "and one [callet]h cruelty what another justice . . ." The Athenians repented of their cruelty, writes Thucydides, while Cleon told them that they had not been cruel at all but justly severe. Yet this was in no sense a disagreement over the meaning of words. Had there been no common meanings, there could have been no debate at all. The cruelty of the Athenians consisted in seeking to punish not only the authors of the rebellion but others as well, and Cleon agreed that that would indeed be cruel. He then went on to argue, as he had to do given his position, that in Mytilene there were no "others." "Let not the fault be laid upon a few, and the people absolved. For they have all alike taken arms against us . . ."

I cannot pursue the argument further, since Thucydides doesn't, but there is an obvious rejoinder to Cleon, having to do with the status of the women and children of Mytilene. This might involve the deployment of additional moral terms (innocence, for example); but it would not hang—any more than the argument about cruelty and justice hangs—on idiosyncratic definitions. In fact, definitions are not at issue here, but descriptions and interpretations. The Athenians shared a moral vocabulary, shared it with the people of Mytilene and Melos; and allowing for cultural differences, they share it with us too. They had no difficulty, and we have none, in understanding the claim of the Melian magistrates that the invasion of their island was unjust. It is in applying the

agreed-upon words to actual cases that we come to disagree. These disagreements are in part generated and always compounded by antagonistic interests and mutual fears. But they have other causes, too, which help to explain the complex and disparate ways in which men and women (even when they have similar interests and no reason to fear one another) position themselves in the moral world. There are, first of all, serious difficulties of perception and information (in war and politics generally), and so controversies arise over "the facts of the case." There are sharp disparities in the weight we attach even to values we share, as there are in the actions we are ready to condone when these values are threatened. There are conflicting commitments and obligations that force us into violent antagonism even when we see the point of one another's positions. All this is real enough, and common enough: it makes morality into a world of good-faith quarrels as well as a world of ideology and verbal manipulation.

In any case, the possibilities for manipulation are limited. Whether or not people speak in good faith, they cannot say just anything they please. Moral talk is coercive; one thing leads to another. Perhaps that's why the Athenian generals did not want to begin. A war called unjust is not, to paraphrase Hobbes, a war disliked; it is a war disliked for particular reasons, and anyone making the charge is required to provide particular sorts of evidence. Similarly, if I claim that I am fighting justly, I must also claim that I was attacked ("put to it," as the Melians were), or threatened with attack, or that I am coming to the aid of a victim of someone else's attack. And each of these claims has its own entailments, leading me deeper and deeper into a world of discourse where, though I can go on talking indefinitely, I am severely constrained in what I can say. I must say this or that, and at many points in a long argument this or that will be true or false. We don't have to translate moral talk into interest talk in order to understand it; morality refers in its own way to the real world.

Let us consider a Hobbist example. In Chapter XXI of *Leviathan*, Hobbes urges that we make allowance for the "natural timorousness" of mankind. "When armies fight, there is on one side, or both a running away; yet when they do it not out of treachery, but fear, they are not esteemed to do it unjustly, but dishonorably." Now, judgments are called for here: we are to distinguish cowards from traitors. If these are words of "inconstant signification," the task is impossible and absurd. Every traitor would plead natural

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timorousness, and we would accept the plea or not depending on whether the soldier was a friend or an enemy, an obstacle to our advancement or an ally and supporter. I suppose we sometimes do behave that way, but it is not the case (nor does Hobbes, when it comes to cases, suppose that it is) that the judgments we make can only be understood in these terms. When we charge a man with treason, we have to tell a very special kind of story about him, and we have to provide concrete evidence that the story is true. If we call him a traitor when we cannot tell that story, we are not using words inconstantly, we are simply lying.

Strategy and Morality

Morality and justice are talked about in much the same way as military strategy. Strategy is the other language of war, and while it is commonly said to be free from the difficulties of moral discourse, its use is equally problematic. Though generals agree on the meaning of strategic terms—entrapment, retreat, flanking maneuver, concentration of forces, and so on—they nevertheless disagree about strategically appropriate courses of action. They argue about what ought to be done. After the battle, they disagree about what happened, and if they were defeated, they argue about who was to blame. Strategy, like morality, is a language of justification.* Every confused and cowardly commander describes his hesitations and panics as part of an elaborate plan; the strategic vocabulary is as available to him as it is to a competent commander. But that is not to say that its terms are meaningless. It would be a great triumph

* Hence we can "unmask" strategic discourse just as Thucydides did with moral discourse. Imagine that the two Athenian generals, after their dialogue with the Melians, return to their camp to plan the coming battle. The senior in command speaks first: "Don't give me any fine talk about the need to concentrate our forces or the importance of strategic surprise. We'll simply call for a frontal assault; the men will organize themselves as best they can; things are going to be confused anyway. I need a quick victory here, so that I can return to Athens covered with glory before the debate on the Sicilian campaign begins. We'll have to accept some risks; but that doesn't matter since the risks will be yours, not mine. If we are beaten, I'll contrive to blame you. That's what war is like." Why is strategy the language of hard-headed men? One sees through it so easily . . .

for the incompetent if they were, for we would then have no way to talk about incompetence. No doubt, "one calleth retreat what another calleth strategic redeployment . . ." But we do know the difference between these two, and though the facts of the case may be difficult to collect and interpret, we are nevertheless able to make critical judgments.

Similarly, we can make moral judgments: moral concepts and strategic concepts reflect the real world in the same way. They are not merely normative terms, telling soldiers (who often don't listen) what to do. They are descriptive terms, and without them we would have no coherent way of talking about war. Here are soldiers moving away from the scene of a battle, marching over the same ground they marched over yesterday, but fewer now, less eager, many without weapons, many wounded: we call this a retreat. Here are soldiers lining up the inhabitants of a peasant village, men, women, and children, and shooting them down: we call this a massacre.

It is only when their substantive content is fairly clear that moral and strategic terms can be used imperatively, and the wisdom they embody expressed in the form of rules. Never refuse quarter to a soldier trying to surrender. Never advance with your flanks unprotected. One might construct out of such commands a moral or a strategic war plan, and then it would be important to notice whether or not the actual conduct of the war conformed to the plan. We can assume that it would not. War is recalcitrant to this sort of theoretical control—a quality it shares with every other human activity, but which it seems to possess to an especially intense degree. In *The Charterhouse of Parma*, Stendhal provides a description of the battle of Waterloo that is intended to mock the very idea of a strategic plan. It is an account of combat as chaos, therefore not an account at all but a denial, so to speak, that combat is accountable. It should be read alongside some strategic analysis of Waterloo like that of Major General Fuller, who views the battle as an organized series of maneuvers and counter-maneuvers.¹⁰ The strategist is not unaware of confusion and disorder in the field; nor is he entirely unwilling to see these as aspects of war itself, the natural effects of the stress of battle. But he sees them also as matters of command responsibility, failures of discipline or control. He suggests that strategic imperatives have been ignored; he looks for lessons to be learned.

The moral theorist is in the same position. He too must come

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to grips with the fact that his rules are often violated or ignored—and with the deeper realization that, to men at war, the rules often don't seem relevant to the extremity of their situation. But however he does this, he does not surrender his sense of war as a human action, purposive and premeditated, for whose effects someone is responsible. Confronted with the many crimes committed in the course of a war, or with the crime of aggressive war itself, he searches for human agents. Nor is he alone in this search. It is one of the most important features of war, distinguishing it from the other scourges of mankind, that the men and women caught up in it are not only victims, they are also participants. All of us are inclined to hold them responsible for what they do (though we may recognize the plea of duress in particular cases). Reiterated over time, our arguments and judgments shape what I want to call *the moral reality of war*—that is, all those experiences of which moral language is descriptive or within which it is necessarily employed.

It is important to stress that the moral reality of war is not fixed by the actual activities of soldiers but by the opinions of mankind. That means, in part, that it is fixed by the activity of philosophers, lawyers, publicists of all sorts. But these people don't work in isolation from the experience of combat, and their views have value only insofar as they give shape and structure to that experience in ways that are plausible to the rest of us. We often say, for example, that in time of war soldiers and statesmen must make agonizing decisions. The pain is real enough, but it is not one of the natural effects of combat. Agony is not like Hobbit fear; it is entirely the product of our moral views, and it is common in war only insofar as those views are common. It was not some unusual Athenian who "repented" of the decision to kill the men of Mytilene, but the citizens generally. They repented, and they were able to understand one another's repentance, because they shared a sense of what cruelty meant. It is by the assignment of such meanings that we make war what it is—which is to say that it could be (and it probably has been) something different.

What of a soldier or statesman who does not feel the agony? We say of him that he is morally ignorant or morally insensitive, much as we might say of a general who experienced no difficulty making a (really) difficult decision that he did not understand the strategic realities of his own position or that he was reckless and insensible of danger. And we might go on to argue, in the case of

the general, that such a man has no business fighting or leading others in battle, that he ought to know that his army's right flank, say, is vulnerable, and ought to worry about the danger and take steps to avoid it. Once again, the case is the same with moral decisions: soldiers and statesmen ought to know the dangers of cruelty and injustice and worry about them and take steps to avoid them.

Historical Relativism

Against this view, however, Hobbist relativism is often given a social or historical form: moral and strategic knowledge, it is said, changes over time or varies among political communities, and so what appears to me as ignorance may look like understanding to someone else. Now, change and variation are certainly real enough, and they make for a tale that is complex in the telling. But the importance of that tale for ordinary moral life and, above all, for the judgment of moral conduct is easily exaggerated. Between radically separate and dissimilar cultures, one can expect to find radical dichotomies in perception and understanding. No doubt the moral reality of war is not the same for us as it was for Genghis Khan; nor is the strategic reality. But even fundamental social and political transformations within a particular culture may well leave the moral world intact or at least sufficiently whole so that we can still be said to share it with our ancestors. It is rare indeed that we do not share it with our contemporaries, and by and large we learn how to act among our contemporaries by studying the actions of those who have preceded us. The assumption of that study is that they saw the world much as we do. That is not always true, but it is true enough of the time to give stability and coherence to our moral lives (and to our military lives). Even when world views and high ideals have been abandoned—as the glorification of aristocratic chivalry was abandoned in early modern times—notions about right conduct are remarkably persistent: the military code survives the death of warrior idealism. I shall say more about this survival later on, but I can demonstrate it now in a general way by looking at an example from feudal Europe, an age in some ways more distant from us than Greece of the city states, but with which we nevertheless share moral and strategic perceptions.

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Three Accounts of Agincourt

Actually, the sharing of strategic perceptions is in this case the more dubious of the two. Those French knights so many of whom died at Agincourt had notions about combat very different from our own. Modern critics have still felt able to criticize their "fanatical adherence to the old method of fighting" (King Henry, after all, fought differently) and even to offer practical suggestions: the French attack, writes Oman, "should have been accompanied by a turning movement around the woods . . ." ¹¹ Had he not been "overconfident," the French commander would have seen the advantages of the move. We can talk in a similar way about the crucial moral decision that Henry made toward the end of the battle, when the English thought their victory secure. They had taken many prisoners, who were loosely assembled behind the lines. Suddenly, a French attack aimed at the supply tents far in the rear seemed to threaten a renewal of the fighting. Here is Holinshed's sixteenth century account of the incident (virtually copied from an earlier chronicle): ¹²

. . . certain Frenchmen on horseback . . . to the number of six hundred horsemen, which were the first that fled, hearing that the English tents and pavilions were a good way distant from the army, without any sufficient guard to defend the same . . . entered upon the king's camp and there . . . robbed the tents, broke up chests, and carried away caskets and slew such servants as they found to make any resistance. . . . But when the outcry of the lackeys and boys which ran away for fear of the Frenchmen . . . came to the king's ears, he doubting lest his enemies should gather together again, and begin a new field; and mistrusting further that the prisoners would be an aid to his enemies . . . contrary to his accustomed gentleness, commanded by sound of trumpet that every man . . . should incontinently slay his prisoner.

The moral character of the command is suggested by the words "accustomed gentleness" and "incontinently." It involved a shattering of personal and conventional restraints (the latter well-established by 1415), and Holinshed goes to some lengths to explain and excuse it, stressing the king's fear that the prisoners his forces held were about to rejoin the fighting. Shakespeare, whose *Henry V* closely follows Holinshed, goes further, emphasizing the slaying of the English servants by the French and omitting the chronicler's assertion that only those who resisted were killed: ¹³

Fluellen. Kill the [b]oys and the baggage! 'Tis expressly against the law of arms. 'Tis as arrant a piece of knavery, mark you now, as can be offert.

At the same time, however, he cannot resist an ironical comment:

Gower. . . . they have burned and carried away all that was in the king's tent, wherefore the king most worthily hath caused every soldier to cut his prisoner's throat. O, 'tis a gallant king!

A century and a half later, David Hume gives a similar account, without the irony, stressing instead the king's eventual cancellation of his order:¹⁴

. . . some gentlemen of Picardy . . . had fallen upon the English baggage, and were doing execution on the unarmed followers of the camp, who fled before them. Henry, seeing the enemy on all sides of him, began to entertain apprehensions from his prisoners; and he thought it necessary to issue a general order for putting them to death; but on discovering the truth, he stopped the slaughter, and was still able to save a great number.

Here the moral meaning is caught in the tension between "necessary" and "slaughter." Since slaughter is the killing of men as if they were animals—it "makes a massacre," wrote the poet Dryden, "what was a war"—it cannot often be called necessary. If the prisoners were so easy to kill, they were probably not dangerous enough to warrant the killing. When he grasped the actual situation, Henry, who was (so Hume wants us to believe) a moral man, called off the executions.

French chroniclers and historians write of the event in much the same way. It is from them that we learn that many of the English knights refused to kill their prisoners—not, chiefly, out of humanity, rather for the sake of the ransom they expected; but also "thinking of the dishonor that the horrible executions would reflect on themselves."¹⁵ English writers have focused more, and more worriedly, on the command of the king; he was, after all, their king. In the later nineteenth century, at about the same time as the rules of war with respect to prisoners were being codified, their criticism grew increasingly sharp: "a brutal butchery," "cold-blooded wholesale murder."¹⁶ Hume would not have said that, but the difference between that and what he did say is marginal, not a matter of moral or linguistic transformation.

To judge Henry ourselves we would need a more circumstantial account of the battle than I can provide here.¹⁷ Even given that account, our opinions might differ, depending on the allowance we

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were willing to make for the stress and excitement of battle. But this is a clear example of a situation common in both strategy and morality, where our sharpest disagreements are structured and organized by our underlying agreements, by the meanings we share. For Holinshed, Shakespeare, and Hume—traditional chronicler, Renaissance playwright, and Enlightenment historian—and for us too, Henry’s command belongs to a category of military acts that requires scrutiny and judgment. It is *as a matter of fact* morally problematic, because it accepts the risks of cruelty and injustice. In exactly the same way, we might regard the battle plan of the French commander as strategically problematic, because it accepted the risks of a frontal assault on a prepared position. And, again, a general who did not recognize these risks is properly said to be ignorant of morality or strategy.

In moral life, ignorance isn’t all that common; dishonesty is far more so. Even those soldiers and statesmen who don’t feel the agony of a problematic decision generally know that they should feel it. Harry Truman’s flat statement that he never lost a night’s sleep over his decision to drop the atomic bomb on Hiroshima is not the sort of thing political leaders often say. They usually find it preferable to stress the painfulness of decision-making; it is one of the burdens of office, and it is best if the burdens appear to be borne. I suspect that many officeholders even experience pain simply because they are expected to. If they don’t, they lie about it. The clearest evidence for the stability of our values over time is the unchanging character of the lies soldiers and statesmen tell. They lie in order to justify themselves, and so they describe for us the lineaments of justice. Wherever we find hypocrisy, we also find moral knowledge. The hypocrite is like that Russian general in Solzhenitsyn’s *August 1914*, whose elaborate battle reports barely concealed his total inability to control or direct the battle. He knew at least that there was a story to tell, a set of names to attach to things and happenings, so he tried to tell the story and attach the names. His effort was not mere mimicry; it was, so to speak, the tribute that incompetence pays to understanding. The case is the same in moral life: there really is a story to tell, a way of talking about wars and battles that the rest of us recognize as morally appropriate. I don’t mean that particular decisions are necessarily right or wrong, or simply right or wrong, only that there is a way of seeing the world so that moral decision-making makes sense. The hypocrite knows that this is true, though he may actually see the world differently.

Hypocrisy is rife in wartime discourse, because it is especially important at such a time to appear to be in the right. It is not only that the moral stakes are high; the hypocrite may not understand that; more crucially, his actions will be judged by other people, who are not hypocrites, and whose judgments will affect their policies toward him. There would be no point to hypocrisy if this were not so, just as there would be no point to lying in a world where no one told the truth. The hypocrite presumes on the moral understanding of the rest of us, and we have no choice, I think, except to take his assertions seriously and put them to the test of moral realism. He pretends to think and act as the rest of us expect him to do. He tells us that he is fighting according to the moral war plan: he does not aim at civilians, he grants quarter to soldiers trying to surrender, he never tortures prisoners, and so on. These claims are true or false, and though it is not easy to judge them (nor is the war plan really so simple), it is important to make the effort. Indeed, if we call ourselves moral men and women, we must make the effort, and the evidence is that we regularly do so. If we had all become realists like the Athenian generals or like Hobbists in a state of war, there would be an end alike to both morality and hypocrisy. We would simply tell one another, brutally and directly, what we wanted to do or have done. But the truth is that one of the things most of us want, even in war, is to act or to seem to act morally. And we want that, most simply, because we know what morality means (at least, we know what it is generally thought to mean).

It is that meaning that I want to explore in this book—not so much its general character, but its detailed application to the conduct of war. I am going to assume throughout that we really do act within a moral world; that particular decisions really are difficult, problematic, agonizing, and that this has to do with the structure of that world; that language reflects the moral world and gives us access to it; and finally that our understanding of the moral vocabulary is sufficiently common and stable so that shared judgments are possible. Perhaps there are other worlds to whose inhabitants the arguments I am going to make would seem incomprehensible and bizarre. But no such people are likely to read this book. And if my own readers find my arguments incomprehensible and bizarre, that will not be because of the impossibility of moral discourse or the inconstant signification of the words I use, but because of my own failure to grasp and expound our common morality.